

Terms and Conditions of the Bank for International Settlements for IT Services

1. Scope, Applicability and Contractual Ranking

- 1.1. These terms and conditions ("Terms and Conditions") of the Bank for International Settlements ("BIS") govern the conclusion, content, and performance of the contract for the provision of IT services, between the BIS and the service supplier (the "Supplier").
- 1.2. By submitting an offer/proposal or quote ("Proposal") to the BIS, and/or by accepting a Purchase Order from the BIS, the Supplier acknowledges and agrees that these Terms and Conditions apply.
- 1.3. These Terms and Conditions, any Purchase Order and, where applicable, any contract in written form, are hereinafter collectively referred to as the "Agreement".
- 1.4. Any contractual terms and conditions of the Supplier are hereby excluded (including, any terms and conditions notified to the BIS in connection with the Supplier's Proposal or any terms and conditions to which the Supplier has subjected acceptance of a Purchase Order). The acceptance of these Terms and Conditions without modifications is an essential condition (*conditio sine qua non*) for the BIS to enter into the Agreement with the Supplier.
- 1.5. In the event of any conflict or inconsistency between the various Contractual Documents, the order of priority shall be (unless otherwise agreed in writing): (1) these Terms and Conditions, (2) contract in written form, (3) Purchase Order, (4) Proposal (5) any other relevant document, such as the written solicitation, request for quotation (RFQ) or invitation to tender (ITT), as the case may be.

2. Definitions

In these Terms and Conditions:

- 2.1. **"Acceptance"** means the express acceptance of a particular Service as being compliant with the requirements of the Agreement.
- 2.2. **"Agreement"** means the entire contractual relationship between the Parties as defined in

section 1.3.

- 2.3. **"BIS Data"** means all data, including all text, sound, software, image or video files in electronic or other form that are provided to the Supplier by, or on behalf of, the BIS through, for or otherwise in the context of the use of the Services or generally of the performance of the Agreement.
- 2.4. **"BIS IT Security Standards"** means the set of information security requirements laid down in these Terms and Conditions, in particular in section 25, and, as the case may be, any additional information security requirements specific to particular Services as laid down in the relevant Contractual Document.
- 2.5. **"Business Day"** means Monday to Friday except New Year's Day; Good Friday; Easter Monday; Labour Day; Ascension Day; Whit Monday; Swiss National Day; Assumption (afternoon); All Saints Day; Christmas Eve (afternoon); Christmas Day; St. Stephens Day; New Year's Eve (afternoon).
- 2.6. **"Code of Conduct for Contractors"** means a set of basic rules of behaviour which apply to individuals carrying out Services for the BIS. The Code of Conduct for Contractors is available at <https://www.bis.org/suppliers/cocfc.pdf> and may be updated from time to time.
- 2.7. **"Confidential Information"** means the terms of or relating to the Agreement, Personal Information and all information, including BIS Data, to which the Supplier has access in the context of the performance of the Agreement and which is not available or known to the general public, even if it is not marked or specified as confidential. Confidential Information shall not include information that: (i) is in the public domain without breach of the Agreement; (ii) is already in the Supplier's possession or is lawfully obtained by the Supplier from another source without obligation of confidentiality; (iii) is developed by the Supplier independently of the Services it performs under the Agreement; or (iv) is authorised for disclosure by the BIS's written consent.

- 2.8. **“Contractual Document”** means any contract in written form between the Parties which forms part of the Agreement.
- 2.9. **“Credential Checking”** means a background check carried out in accordance with the BIS’s credential checking procedure. This may include, but is not limited to, completion of the BIS’s credential checking form which is available at <https://www.bis.org/suppliers/ccr.pdf> and may be updated from time to time. The level of clearance will be determined by the BIS. The enhanced credential checking will be carried out by an external company.
- 2.10. **“Data Breach”** means intentional or unintentional, wrongful disclosure of BIS Data or Personal Data to the general public or to a limited untrusted environment.
- 2.11. **“Force Majeure Event”** means an unforeseeable and unavoidable event beyond the reasonable control of the Parties which cannot be overcome despite the reasonable efforts of the affected Party.
- 2.12. **“Going-Live”** refers to the going-live date, i.e. the date after Acceptance, as the case may be, and as confirmed by the Supplier, on which a particular contractually agreed Service is ready for operation and on which the Supplier will assume responsibility for the performance of such Service.
- 2.13. **“Implementation Phase”** refers to the time frame from when a particular Service is installed and/or integrated until Acceptance and/or Going-Live, as the case may be, in connection with the Agreement.
- 2.14. **“Independent Controller”** means a third party that may be engaged by the BIS in order to monitor the Supplier’s performance of a particular Service and to report inter alia on the performance and achievement of service level targets.
- 2.15. **“Insolvency Event”** means occurrence of one or more of the following or similar events: (i) The Supplier causes or is subject to a warning of opening of bankruptcy, filing of a bankruptcy petition or opening of bankruptcy. (ii) The Supplier has a receiver or administrative receiver appointed over it or over any part of its undertaking or assets. (iii) The Supplier passes a resolution for winding-up, or a court of competent jurisdiction makes an order to that effect. (iv) The Supplier becomes subject to an administration order. (v) The Supplier enters into any voluntary arrangement with its creditors. (vi) The Supplier becomes insolvent or ceases or threatens to cease to carry on business.
- 2.16. **“Intellectual Property Right”** means all right, title and interest from time to time in and to: (i) any patents, trademarks, service marks, designs, business names, copyrights, database rights, design rights, domain names, moral rights, inventions, confidential information, knowhow and other intellectual property rights and interests (which may now or in the future subsist), whether registered or unregistered; and (ii) the benefit of all applications and rights to use such assets (which may now or in the future subsist), and in each case including any related lease, licences and sub-licences of the same.
- 2.17. **“IT”** means information technology.
- 2.18. **“ITT”** means the BIS’s invitation to tender.
- 2.19. **“KPI”** means key performance indicator which is a measurable value that is suitable for demonstrating how effectively in terms of quality, quantity, time etc. the Supplier is providing a Service.
- 2.20. **“Materials”** means all materials, equipment and supplies which may be provided by the BIS to the Supplier for the performance of its obligations under the Agreement.
- 2.21. **“Operating Phase”** refers to the time frame from Acceptance or Going-Live, as the case may be, of a particular Service until decommissioning of such Service or termination of the relevant Contractual Document, whatever comes first.
- 2.22. **“Party”** means either the BIS or the Supplier, as the context requires, and which shall collectively be referred to as the Parties.
- 2.23. **“Personal Data”** means any information relating to an identified or identifiable living natural person; an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of natural person.
- 2.24. **“Personnel”** means any and all persons performing obligations under or relating to the Agreement. This includes Subcontractors.

- 2.25. **"Premises"** means the buildings or parts of buildings and surrounding land, whoever may be the owner thereof, which are used for the BIS's purposes.
- 2.26. **"Purchase Order"** means a contractual document issued by the BIS to the Supplier describing the Services, applicable fees and other terms and conditions.
- 2.27. **"RFQ"** means the BIS's request for quotation.
- 2.28. **"Service"** means a particular service, including any Works, provided by the Supplier as defined in the relevant Contractual Document. **"Services"** shall mean the plural form of Service or, as the case may be, the entirety of the services provided by the Supplier to the BIS as defined in the Agreement.
- 2.29. **"Service Provider"** means any third party providing IT services to the BIS, which shall be replaced by the Supplier or replace the Supplier with regard to the Agreement or any individual Contractual Document.
- 2.30. **"Subcontractor"** means any third party engaged by the Supplier to perform part or all of the Services.
- 2.31. **"Superior Right"** means any third party's title, property rights or other proprietary rights, including, but not limited to, any liens or security interests, as well as any third party's Intellectual Property Rights.
- 2.32. **"Works"** means materials, standards, concepts, documentation, files, software, technology, data, code, concepts, designs, techniques, reports, ideas, know-how, business methods, formulas, inventions and other works, including scientific, literary, and artistic works.
- 2.33. Any of the terms defined in this section shall have the same meaning in any of the Contractual Documents, unless explicitly defined otherwise therein. As the context may require, the defined terms shall be considered equally valid if used in either the singular or the plural form.

3. Purchase Order

- 3.1. In the absence of a specific contract in written form, the Purchase Order shall constitute the legal commitment of the BIS to purchase the Services, as specified in the Purchase Order, on the terms and conditions set out in the

Purchase Order. The Purchase Order, including these Terms and Conditions, shall be deemed to have been accepted by the Supplier and thus a contract shall be concluded between the Parties unless the Supplier rejects the Purchase Order by a written notice to the BIS within five Business Days of its receipt. The issued Purchase Order, including its terms and conditions, shall also be deemed to be accepted if it is executed before the expiry of the five Business Days period. Each accepted Purchase Order shall constitute a separate contract. The BIS reserves the right to revoke any Purchase Order by notifying the Supplier prior to the acceptance of the Purchase Order.

4. Invoicing and Tax Status of the BIS

- 4.1. The Supplier shall issue invoices to the BIS following the performance of all its obligations under the Agreement.
- 4.2. All invoices shall indicate the BIS purchase order number. If such a number has not been issued by the BIS, the Supplier shall add the reference "No PO" and the contact person at the BIS. Invoices without a reference to a BIS Purchase Order number may be processed with delay.
- 4.3. The invoices shall contain a detailed breakdown of the Goods or Services supplied, clearly state the price of the individual items, any deductions, and the delivery date or period of performance.
- 4.4. Invoices shall be sent electronically to (unless indicated otherwise):

invoice@bis.org
 Subject: Invoice [PO number]
- 4.5. Payment shall be due within 30 days after receipt of the complete and correct invoice. Late payment shall not entitle the Supplier to claim interest or to terminate the Agreement.
- 4.6. The BIS enjoys a special tax status as an international organisation in Switzerland. Accordingly, it is exempt from Swiss VAT. Therefore, invoices shall not include any Swiss VAT and must bear the remark *"von der Steuer befreit"* or *"Befreiung von der MWST nach Art. 144 MWSTV"*. If the wording *"inklusive MWST"*, either with or without indication of the relevant tax rate, is pre-printed on the invoice, then such wording must be struck through on both the original and all copies. Any other taxes or

dues incorporated in the price must be clearly disclosed on the invoices, so as to allow the BIS to claim exemption.

5. Default

- 5.1. contractual deadlines stated in the Agreement shall be deemed to be fixed deadlines. If the Supplier fails to meet fixed deadlines, it shall be deemed to be in default immediately, and in all other cases upon receipt of a reminder.

6. Documentation

- 6.1. The Supplier shall provide the BIS with all necessary documentation following fulfilment of the Agreement. All documentation provided by the Supplier shall be in the English language.
- 6.2. The BIS shall be authorised to create copies of such documentation.

7. Materials Furnished by the BIS

- 7.1. The BIS shall remain the owner of the Materials, and any such Materials shall be returned to the BIS upon fulfilment of the Agreement or when no longer needed by the Supplier, whichever is soonest.
- 7.2. Such Materials, when returned to the BIS, shall be in the same condition as when delivered by the BIS, subject to normal wear and tear, and the Supplier shall be liable for compensating the BIS for the actual costs of any loss of, damage to, or degradation of the Materials that is beyond normal wear and tear.
- 7.3. The Supplier shall have no retention right to the Materials under any circumstances.

8. Personnel

- 8.1. The Supplier shall ensure that the Personnel is qualified, reliable, competent, properly trained, and that it conforms to the highest standards of professional and technical competence, and moral and ethical conduct.
- 8.2. In the normal course of business, Personnel shall not be replaced or removed without the prior written consent of the BIS. The BIS expressly reserves the right to request the replacement or removal of the Personnel at any time for good cause. In the event of such replacement or removal of Personnel, the

Supplier shall take all necessary measures to ensure the continuing performance of the Agreement.

- 8.3. The Supplier shall be solely responsible for any costs, expenses, or claims associated with any illness, injury, death, or disability of the Personnel.

9. Subcontractors

- 9.1. The Supplier may only engage Subcontractors for the performance of the Agreement with the BIS's prior written consent.
- 9.2. The Supplier shall ensure that Subcontractors (i) are properly selected, instructed and supervised; (ii) are bound by all obligations arising out of the Agreement; (iii) do not further transfer any rights or obligations; and (iv) comply with instructions given by authorised representatives of the BIS.
- 9.3. The Supplier shall be responsible and liable for all actions performed by any Subcontractor and its personnel to the same extent as for its own employees. The Supplier shall remain liable for the performance of and compliance with the Agreement.
- 9.4. The BIS may request the withdrawal of an existing Subcontractor.

10. Credential Checking and Code of Conduct

- 10.1. The Supplier shall ensure that individuals who are to have access to the Premises or to any BIS Data are informed of and comply with the Code of Conduct for Contractors
- 10.2. The BIS may, at its option, require that individuals who are to have access to the Premises or to any BIS Data be subject to the Credential Checking.
- 10.3. The Supplier will strictly adhere to the Credential Checking procedure and agrees to cooperate fully to the extent required by such procedure.
- 10.4. In the event that any of the Supplier's personnel fails the Credential Checking, the Supplier will ensure that such individual is immediately replaced.

11. Work on BIS Premises

- 11.1. Personnel may work on the Premises only (i) if contractual obligations are to be performed on the Premises; and (ii) with the prior written consent of the BIS.
- 11.2. The Supplier shall ensure that all Personnel working on the Premises comply with the BIS rules, regulations, guidelines and relevant safety provisions.
- 11.3. The BIS has the right, in its sole discretion, to refuse admittance to, or require the replacement or removal of, the Personnel from its Premises at any time without providing any justification. Any such refusal of admittance or request for replacement or removal of Personnel shall not, in and of itself, entitle the Supplier to claim any delays in the performance, or to assert any excuses for the non-performance, of any of its obligations under the Agreement.
- 11.4. No data storage device shall leave the Premises unless it has been cleared of BIS related data in such a way that no data can be recovered. The Supplier ensures that those devices not allowed to leave the Premises are stored or destroyed by the Supplier in line with the relevant BIS procedures as far as they have been brought to the Supplier's attention.
- 11.5. For the purpose of this section, transport of data storage devices directly between the Premises as well as, for purposes of remote performance or configuration of the Services, as authorised in writing by the BIS in advance, shall not be considered as leaving the Premises.

12. Remote Performance

- 12.1. The Parties may envisage remote performance of the Services if the following requirements are met: (i) the Parties have explicitly agreed in advance in writing the scope of the Services to be performed remotely in a Contractual Document; (ii) the remote connection is protected by strong, state of the art

authentication; (iii) the remote connection shall only affect equipment as listed in the relevant Contractual Document; (iv) remote access to the BIS IT systems shall only be conducted via BIS approved remote access methods in accordance with BIS IT Security Standards and subject to BIS IT risk assessment; (v) any individual that is engaged with performing Services remotely via external telecommunications connection must be approved by the BIS through Credential Checking.

13. BIS Data

- 13.1. The Supplier shall not use the BIS Data for any purpose other than the performance of the Agreement.
- 13.2. If the Supplier stores confidential or strictly confidential BIS Data, as determined by the BIS, the BIS Data shall (i) not be physically stored outside jurisdictions in which the BIS enjoys privileges and immunities¹; (ii) be segregated from third party data; and (iii) be identifiable as BIS Data. The BIS shall retain at any time full control over all BIS Data, regardless of where the data is physically stored. The Supplier must further ensure that it has no ongoing access over an extended period of time (standing access) to such confidential or strictly confidential BIS Data from outside of jurisdictions where the BIS enjoys privileges and immunities.
- 13.3. If the Supplier processes BIS Data, the Supplier shall (i) take all economically reasonable, and technically and organisationally feasible precautions to ensure that the BIS Data is effectively protected against unauthorised access by third parties; (ii) upon the BIS's request grant the BIS the right to access and rectify the BIS Data, and, after completion or termination of the Agreement; (iii) return the BIS Data; (iv) irrevocably delete or destroy the BIS Data on any media (including test or backup media) in accordance with the recognised current best practices and; (v) upon request, confirm such deletion or destruction to the BIS in writing.

¹ Switzerland, Mexico, Hong Kong SAR, Singapore, United Kingdom, Sweden, Germany, France, Canada

- 13.4. The return, deletion or destruction of the BIS Data must take place within 30 days after completion or termination of the Agreement. If the data on backup media cannot be deleted, the backups must be protected in accordance with the recognised current best practices and must be deleted or destroyed within one year at the latest. If the Supplier is subject to a legal obligation to retain the BIS Data, the return, deletion, or destruction of the data subject to this retention obligation must take place within 30 days after the end of the retention period.
- 13.5. Upon the occurrence of any Insolvency Event or similar proceedings, all BIS Data must be returned to the BIS in a format that is easily accessible and importable into BIS applications or systems, or as otherwise specified by the BIS. In addition, any form of retention right whatsoever is, to the extent permitted by law, herewith excluded and BIS Data may under no circumstances be used in bankruptcy or similar proceedings.
- 13.6. The provisions of this section shall continue to apply notwithstanding the completion, termination or expiry of the Agreement for any reason.

14. Personal Data

- 14.1. The BIS shall process Personal Data in accordance with the requirements of its personal data protection framework. The BIS privacy notice is available online under <https://www.bis.org/privacy.htm>.
- 14.2. The Supplier shall (i) comply with all applicable privacy and data protection legislation in the processing of the Personal Data; (ii) process Personal Data solely for the purposes of the performance of its obligations under the Agreement and only to the extent to which the processing is necessary for the relevant purpose; (iii) guarantee the confidentiality of the Personal Data; (iv) not disclose any Personal Data to any person other than those that need access to such Personal Data in support of the performance of obligations under the Agreement; (v) ensure the persons authorised to process personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality and receive the appropriate personal data protection training; (vi) take into consideration, in terms of its tools, products, applications or services, the principles of data protection by design and by default; (vii) keep Personal Data correct and up to date; (viii) keep Personal Data only for as long as necessary for the achievement of the purpose it was transferred to or collected by the Supplier as agreed with the BIS; and (ix) maintain appropriate technical and organisational measures for protection of the security, confidentiality and integrity of the Personal Data, taking into account the sensitivity of the information in question.
- 14.3. The Supplier may engage third-party sub-processors in connection with the provision of services under the Agreement provided that the Supplier has entered into a written agreement with each sub-processor containing, in substance, data protection obligations no less protective than those in the Agreement with respect to the protection of personal data. Upon request, the Supplier shall provide a list of its current sub-processors. The Supplier shall be liable for the acts and omissions of its sub-processors to the same extent the Supplier would be liable if performing the services of each sub-processors directly under the terms of the Agreement.
- 14.4. If for the performance of the Agreement, the Supplier is required to transfer Personal Data outside of its country of origin, the Supplier shall ensure that safeguards are in place to protect Personal Data in the relevant third country in accordance with all applicable privacy and data protection legislation.
- 14.5. The BIS is an international organisation, and accordingly, any transfer of personal data from the BIS to the Supplier shall not constitute a restricted transfer of personal data limited by the applicable privacy and data protection legislation requiring any further safeguards to be adopted beyond those set out in the Agreement. Processing of personal data by the Supplier will be subject to the applicable privacy and data protection legislation, and any transfer of personal data from the Supplier to the BIS may constitute a restricted transfer of personal data under such applicable privacy and data protection legislation. However, the Parties agree that neither shall be in breach of the Agreement for any failure to adopt standard contractual clauses with respect to the transfer of such personal data to the BIS.

- 14.6. The Supplier shall assist the BIS, insofar as this is reasonable, for the fulfilment of its obligation to respond to requests for exercising data subjects' rights.
- 14.7. The provisions of this section shall continue to apply notwithstanding the completion, termination or expiry of the Agreement for any reason.

15. Information Security and Data Breaches

- 15.1. When performing Services the Supplier shall comply and shall ensure that all individuals performing obligations under the Agreement comply with the BIS IT Security Standards.
- 15.2. The Supplier shall implement administrative, physical, and technical safeguards to protect BIS information that are no less rigorous than accepted industry practices (including, without limitation, ISO/IEC 27001:2005; ISO/IEC 27002:2013 ITIL Standards, and NIST Cyber Security Framework). At a minimum, the Supplier's safeguards for the protection of BIS information shall include: (i) limiting access to information to authorised persons; (ii) securing business facilities, data centres, hard copy records, IT systems, back-up systems, and other IT computing assets; (iii) implementing appropriate network, device, application, database, and platform security; (iv) appropriately securing information transmission, storage and disposal; (v) implementing appropriate authentication and access controls; and (vi) implementing appropriate personnel security practices.
- 15.3. Upon request, the Supplier shall provide the BIS with a network diagram outlining the Supplier's IT network infrastructure and all equipment used in connection with the performance of its obligations under the Agreement including, without limitation: (i) connectivity to the BIS and all third parties (including Sub-contractors); (ii) access control devices (firewalls, routers etc.); (iii) back-up and redundant services; and (iv) permitted access through each network connection.
- 15.4. The Supplier shall disclose to the BIS the reliance on any external dependencies critical in providing Services to the BIS.
- 15.5. The Supplier shall provide the BIS with the name and contact information of an individual

or functional role within the Supplier's organisation who shall serve as the primary security contact relating to Services provided under the Agreement and who shall be available to assist the BIS 24 hours a day 365 days a year in resolving problems associated with a Data Breach.

- 15.6. In the event of a Data Breach, the Supplier shall: (i) notify the BIS of the Data Breach as soon as practicable, but no later than 24 hours after the Supplier becomes aware of it by email to "cyber@bis.org/corporate.security@BIS.org"; (ii) provide the BIS with relevant technical information relating to the Data Breach such as logs, audit events, security events, and other data relevant to the Data Breach; (iii) immediately remedy the Data Breach to the satisfaction of the BIS; (iv) after consultation with and approval by the BIS, take measures to prevent further Data Breaches at the Supplier's expense; and (v) take reasonable measures to prevent the recurrence of a Data Breach.
- 15.7. The Parties shall cooperate and coordinate with each other to investigate the Data Breach in accordance with the Supplier's incident response policies and procedures a copy of which must be provided to the BIS.
- 15.8. The Supplier will not inform any third parties (including public authorities and government organisation etc.) of any Data Breach and impact on the BIS without the BIS's prior written consent.
- 15.9. The Supplier agrees to fully cooperate with the BIS in any litigation or administrative proceeding deemed necessary by the BIS to protect its rights relating to the confidentiality, use, disclosure, protection and maintenance of Confidential Information.

16. Intellectual Property Rights

- 16.1. The Supplier undertakes to assign and hereby assigns to the BIS all Intellectual Property Rights in and to any Services developed or produced by the Supplier, whether alone or in collaboration with the BIS, specifically and exclusively for the contract performance. This assignment includes all necessary rights to use, modify, and distribute the Services.
- 16.2. The Supplier shall take all necessary steps, execute all necessary documents and generally

assist in securing such Intellectual Property Rights and transferring or licensing them to the BIS in compliance with the requirements of the applicable law.

- 16.3. With respect to pre-existing Intellectual Property Rights relating to the Services, the BIS shall receive a non-exclusive, transferable right of use without restrictions in terms of time, space and substance, which grants the BIS the possibility to use and dispose of the Services. The Supplier undertakes not to establish any rights based on those pre-existing Intellectual Property Rights which could be asserted against the possibilities of use granted herein. In particular, it undertakes to transfer or license these Intellectual Property Rights only subject to the rights of use of the BIS.

17. Confidentiality

- 17.1. The Supplier shall treat the Confidential Information as confidential, and shall take at least the same degree of care to avoid disclosure, publication or dissemination of the provided information as it uses for its own confidential information.
- 17.2. The Supplier shall not use, permit the use of, or make available the Confidential Information other than to its own employees, officers, contracted staff, or other persons assisting or advising the Supplier, on a need-to-know basis, for the performance of the Agreement.
- 17.3. The Supplier shall not copy any information, whether electronically or in any other form, unless and to the extent necessary for the performance of the Agreement. Once the copies are no longer required or the Agreement is completed or terminated, such copies shall be completely destroyed or, upon request, returned to the BIS. The Supplier shall provide evidence of compliance with this requirement to the BIS upon request.
- 17.4. The Supplier must inform the BIS immediately if it knows or has reason to believe that Confidential Information has been subject to unauthorised access, has been passed on to unauthorised third parties, has been lost or damaged, or has been (or may have been) otherwise processed illegally or in violation of the Agreement. In addition, the Supplier must immediately take the necessary emergency measures to secure the Confidential

Information and to prevent or minimise any possible adverse consequences. The Supplier shall cooperate fully with the BIS in investigating any such incidents and in implementing any additional security measures deemed necessary by the BIS.

- 17.5. The confidentiality obligation shall not be considered breached if Confidential Information is transmitted by the Supplier within the group or to any Subcontractor insofar as transmission is necessary for contract performance. The Parties shall impose the confidentiality obligation on their group companies, employees and Subcontractors.
- 17.6. The provisions of this section shall continue to apply notwithstanding the completion, termination or expiry of the Agreement for any reason.

18. Use of the BIS Name, Acronym, Logo, or Trademarks

- 18.1. The Supplier may use the name, acronym, logo, or trademarks of the BIS only as required for internal purposes for the performance of the Agreement.
- 18.2. The Supplier may not use the name, acronym, logo, or trademarks of the BIS in any marketing material, advertising, publicity releases, presentations, or any other publicly available information.
- 18.3. The Supplier may not mention the business relationship with the BIS, and the existence, nature, and terms of the Agreement, to any third party without the BIS's prior written consent.
- 18.4. The provisions of this section shall continue to apply notwithstanding the completion, termination or expiry of the Agreement for any reason.

19. Conflict of interest

- 19.1. The Supplier ensures that its contractual performance for the BIS does not give rise to any actual or potential conflict with the Supplier's obligations towards third parties.
- 19.2. The Supplier will immediately inform the BIS of a potential conflict of interest. If it is not possible to avoid a conflict or to solve it in another manner, the BIS may terminate the

Agreement with immediate effect.

20. Insurance

- 20.1. The Supplier shall, without limiting its obligations or liabilities herein and at its own expense, maintain all insurances that are standard in its field of activity, including a liability insurance.
- 20.2. The Supplier shall ensure that all Subcontractors providing services under the Agreement maintain equivalent insurance coverage.
- 20.3. Upon request by the BIS, the Supplier shall provide appropriate evidence of such insurance coverage.

21. Liability

- 21.1. Each Party shall be liable for all damages it causes to the other Party in connection with the Agreement.
- 21.2. The Parties shall be liable for the conduct of their employees and other individuals called upon for the purpose of contract performance in the same way as for their own conduct.

22. Force Majeure

- 22.1. If performance of the Agreement, in whole or in part, is prevented or delayed due to a Force Majeure Event, then the time for performance shall be modified accordingly, subject to the delayed Party promptly (but at the latest within three days) notifying the other Party of the Force Majeure Event and taking all reasonable steps to reduce the resulting delay. In the event that a Force Majeure Event continues for more than sixty days, either Party may terminate the Agreement with immediate effect.

23. Information on Progress

- 23.1. The Supplier shall, upon request, provide the BIS with information on the progress of the work and shall immediately notify the BIS in writing of any circumstances which may affect or jeopardise performance in accordance with the Agreement.
- 23.2. Progress reports may include but are not limited to project status, milestones achieved, issues encountered, and planned activities for the next reporting period.

- 23.3. The BIS reserves the right to review and inspect all Services performed by the Supplier at all reasonable places and times.

24. Acceptance and Notice of Defects

- 24.1. Under no circumstances shall the BIS be required to accept any Services that do not comply with the specifications and requirements of the Agreement.
- 24.2. Full or partial payment by the BIS shall not be deemed acceptance by the BIS of any Services.
- 24.3. If goods, works or other material form part of the Service, a written protocol shall be prepared and signed by the Parties upon the BIS's request.
- 24.4. The warranty period shall commence with the final acceptance of the Service. Any requirement for the notice of defects are hereby waived and the BIS reserves the right to exercise its warranty rights at any time during the statutory warranty period.

25. Warranties and Remedies

- 25.1. The Supplier warrants and represents that: (i) the Services will comply with the specifications, timescales, and related requirements set forth in the Agreement; (ii) the Services will comply with applicable statutory requirements and current industry standards; (iii) all materials, techniques, and workmanship utilised in performing the Services will be in accordance with the Agreement and free from defects, and that materials, techniques, and workmanship not conforming to the specifications in the Agreement will not be used in performance of the Services without prior written approval of the BIS; (iv) the Services are unencumbered and free from any right of claim by any third party; (v) the Services are free from any faults and defects including in design, technique, and workmanship; (vi) it is in possession of all the rights to provide the Services and that the Services do not infringe any third party's rights; and (vii) it has taken all commercially reasonable steps to ensure that the Services do not contain any defect or abnormality commonly known as a computer "virus" or "malicious code" and for the duration of the Agreement will continue to take all commercially reasonable steps to protect against the introduction of such defects or

abnormalities to any Services owned or used by the BIS.

- 25.2. Notwithstanding any other rights of or remedies available to the BIS, in case of any breach by the Supplier of the warranties, the BIS may reject any part of or all Services and, at the BIS's sole discretion, request that the Supplier promptly and at the Supplier's sole expense: (i) re-perform or take any other appropriate actions to remedy the rejected Services within a reasonable time specified by the BIS; or (ii) provide a full refund to the BIS of the entire price paid by the BIS for the Services at issue.
- 25.3. From the date of acceptance of the remedy measure, a new warranty period of the same duration as the original Service's warranty period shall begin.
- 25.4. If the Supplier does not promptly take corrective measures or if the BIS reasonably determines that the Supplier is unable to remedy the improper performance in a timely manner, the BIS may, at the Supplier's sole expense: (i) replace or repair the Services; (ii) deduct the value reduction from the price; (iii) withdraw from the Agreement; and (iv) obtain the assistance of other entities or persons and have corrective measures taken.
- 25.5. The right to claim compensation for further damage is not affected by the aforementioned remedies.

26. Performance

- 26.1. The Supplier shall perform the Services with due care and diligence, in compliance with all relevant rules and regulations and in accordance with the highest professional standards expected of professionals providing similar services in a similar industry.
- 26.2. In the absence of a written power of attorney, the Supplier is not authorised to represent the BIS and may not bind the BIS vis-à-vis third parties.

27. Indemnities

- 27.1. The Supplier warrants that no Superior Right will be infringed by any Services provided by the Supplier in performance of the Agreement and duly used by the BIS.
- 27.2. The Supplier shall indemnify, defend, and hold harmless the BIS, its members of staff and

agents from and against any and all losses, liabilities, claims, obligations, costs, expenses (including without limitation reasonable attorneys' fees) which result from, arise in connection with or are related in any way to any claim, demand, action or proceeding for damages brought or sought against the BIS on the basis of an alleged infringement of any Superior Right by any Service provided by or on behalf of the Supplier.

- 27.3. The Supplier shall defend, at its sole expense, the BIS and its officials, agents and employees. The BIS agrees to give the Supplier notice of any such claim made against the BIS within a reasonable period of time. The Supplier shall cooperate with the BIS regarding the defence of such claim and any related settlement negotiations, except for the assertion or defence of privileges and immunities of the BIS or any matter related thereto, for which only the BIS itself is authorised to assert and maintain. The BIS shall have the right, at its own expense, to be represented in any suit or proceeding related to such claim by independent counsel of its own choosing.
- 27.4. Neither Party shall settle any claim in respect of which indemnification may be sought, whether or not the other Party is an actual or potential party to such claim, action or proceeding without the other Party's written consent, which consent shall not be unreasonably withheld or delayed.
- 27.5. If any Superior Right is held to be infringed, or if the Supplier believes that it is likely to be held to be infringed, the Supplier shall, in addition to its other obligations set out above, at its own expense either (i) procure for the BIS the right to continue using the allegedly infringing Service; or (ii) replace or modify the Services to the reasonable satisfaction of the BIS so that they are no longer infringing but remain functionally equivalent. Failing either of which the BIS may, at its option, terminate the relevant Contractual Document without prejudice to the BIS's other rights and remedies.

28. Contract Management

- 28.1. The Parties may use an Independent Controller to, inter alia, monitor the Supplier's contract performance, assess the degree to which service level agreements were fulfilled in a

particular period and to report on the performance of KPI's.

- 28.2. The Independent Controller will provide the Parties with regular reports on the results of the monitoring. The details of the monitoring and of the reports on the results such as the appropriate time schedule for the monitoring, the scope and content of the monitoring and the reports and the time intervals of the reports will be agreed in the respective Contractual Document.
- 28.3. The Parties shall agree on the engagement of the Independent Controller. The costs for the Independent Controller shall be borne by the BIS.
- 28.4. The Independent Controller will provide the Parties with regular reports on the results of the monitoring. The details of the monitoring and of the reports on the results such as the appropriate time schedule for the monitoring, the scope and content of the monitoring and the reports and the time intervals of the reports will be agreed in a written contract.
- 28.5. The Supplier will (i) grant the Independent Controller the required access rights to all services, installations, premises, processes, books, accounts and other records related to the Services provided by the Supplier or its Subcontractors that are subject to the monitoring of the Independent Controller; and (ii) provide the Independent Controller with all the desired information regarding such Services, and in hard copy or electronic format copies of the books, accounts and other records of the Supplier or its Subcontractors in relation to such Services provided under the Agreement.

29. Import/Export Control

- 29.1. The BIS acknowledges that goods and services, including any related technology or documentation, to be supplied for the performance of the Services and which originate from outside Switzerland may be subject to export control requirements for high technology goods.
- 29.2. The BIS has informed the Supplier of its status as an international organisation, of the preferential customs treatment it enjoys in Switzerland and of the fact that its importation of goods and services, including any related

technology or documentation of any kind, is not subject to any restrictions.

- 29.3. The Supplier will ensure compliance with any export restrictions and import regulations from the place of origin to the place of delivery in accordance with the Agreement. The Supplier will inform the BIS in writing about any export restrictions in the country of origin.
- 29.4. A customs declaration form (form number 14.60) can be provided by the BIS upon request of the Supplier. It is recommended that the customs clearance be carried out in Basel.

30. Non-Waiver of Immunities and Privileges

- 30.1. Nothing in the Agreement shall be deemed to be or construed to be a waiver, express or implied, of the immunities, privileges and exemptions enjoyed by the BIS and persons connected with the BIS.

31. Relationship between the Parties

- 31.1. The Parties agree and acknowledge that each Party is responsible for complying with all relevant legal requirements relating to the conduct of its business, including, without limitation, compliance with all applicable laws, rules, regulations and ordinances relating to labour or employment. In particular, the Supplier is responsible for ensuring that the Personnel has a valid work permit in accordance with the applicable rules, and that the applicable legislation with regard to mandatory social security and pension contributions, accident insurance, and any other relevant legislation as well as any applicable union labour agreements, is complied with.
- 31.2. It is understood that the position of the Supplier, the Subcontractors and their Personnel is that of an independent contractor. Under no circumstances shall the Supplier, its Subcontractors and their Personnel be considered employees of the BIS.
- 31.3. The Supplier shall not have any right, power or authority to assume or create any obligation or responsibility, express or implied, on behalf of the BIS, or to bind the BIS in any manner.

32. Assignment

- 32.1. The Supplier may not assign, transfer, pledge or otherwise dispose of any claims against the BIS without the BIS's prior written consent.

33. Severability

- 33.1. If any provision of the Agreement shall be held or made invalid by a court decision, statute or rule, or shall be otherwise rendered invalid, the remainder of the Agreement shall not be affected thereby.

34. Termination

- 34.1. Either party shall be entitled to terminate the Agreement or any particular Contractual Document immediately without observance of a notice period if events or circumstances occur that make the continuation of the Agreement objectively unreasonable for that Party such as in particular, but not limited to: (i) serious breach of material contractual obligations by the other Party, including but not limited to the recurrent and serious non-fulfilment of agreed service levels or other fundamental contractual obligations or the recurrent late or non-payment of correct invoices that have not duly been disputed by the BIS; (ii) events or circumstances causing or threatening to cause substantial damage to the other Party; (iii) change of control over the Supplier other than reorganisations within the Supplier's group; (iv) occurrence of an Insolvency Event of the Supplier; or (v) change or occurrence of circumstances that may not be rectified within reasonable time and seriously affect the Supplier's ability to perform Services for the BIS.
- 34.2. In the event of any early termination, the Supplier will only be remunerated for the Services effectively provided up to the termination date in accordance with the agreed payment modalities. The Supplier shall not be entitled to any additional compensation.
- 34.3. In the event of termination of the Agreement or any other Contractual Document, the Supplier agrees to cooperate with the BIS until termination to ensure a smooth take-over of the Services by the BIS or by a new Service Provider, and in particular to ensure the complete transfer of BIS Data and the information required for the take-over of the Services in a

format that is acceptable to the BIS. Moreover, to this end the Parties will agree on an appropriate exit management plan covering additional specific exit tasks and the corresponding fees to be paid by the BIS, which will be integrated in the Agreement as a Contractual Document.

- 34.4. Upon termination of the Agreement the Supplier shall (i) return to the BIS all BIS Data in its possession in a format that is easily accessible and importable into BIS applications or systems, or as otherwise specified by the BIS; and (ii) irreversibly delete BIS Data from all the Supplier's applications or systems. The Supplier shall under no circumstances continue to use or process the BIS Data or restore such data. To the extent permitted by law, any form of retention right whatsoever is herewith excluded.

35. Amendments

- 35.1. No party shall have the right to unilaterally change any part of the Agreement.

36. Applicable Law and Jurisdiction

- 36.1. **The Agreement shall be construed in accordance with and governed by the substantive laws of Switzerland**, without regard to its conflict of law provisions. The application of the United Nations Convention on Contracts for the International Sale of Goods (CISG) of 11 April 1980 is excluded.
- 36.2. **The courts of Basel, Switzerland, shall have exclusive jurisdiction for disputes arising out of or in connection with the Agreement.**